सीमाशुल्क आयुक्त (आयात) का कार्यालय
OFFICE OF THE COMMISSIONER OF CUSTOMS (IMPORT),
मुंबई ज़ोन -□□□, जन संपर्क अनुभाग, हवाई माल संकुल
MUMBAI ZONE – III, PRO CELL, AIR CARGO COMPLEX,
सहार, अंधेरी (पूर्व), मुंबई- ४०० ००९९
SAHAR, ANDHERI (EAST), MUMBAI – 400 099
e-mail- proaccsahar@gmail.com Phone-022-22816696

F.No. S/3-MISC-PRO-516/2013 ACC(I) Part 6 **Date: 20.10.2020**

MINUTES OF THE PERMANENT TRADE FACILITATION COMMITTEE MEETING HELD ON 25.09.2020

The monthly meeting of the Permanent Trade Facilitation Committee (PTFC) for Air Cargo Complex, Sahar, was held on 25.09.2020 at 03.00 pm and was Co-chaired by Shri Vijay Singh Chauhan, Commissioner of Customs (General), Shri Ananta Krishnan, Commissioner of Customs (Export) and Shri Vinayak Azaad, Commissioner of Customs (Import). In view of the government directives advising "social distancing" and restrictions on avoidable movements on account of the threat of Covid-19, the meeting was conducted via Web Conference.

The following officers and representatives from the stakeholder organizations participated in the meeting:

Name & designation		**Organization**
Shri M. K. Sarangi, Addl. Commissioner (Import)		Customs, ACC,Andheri
Shri Vishal Sanap, Addl. Commissioner (Import)		Customs, ACC, Andheri
Shri Prabhakar Kumar, Jt. Commissioner (Export)		Customs, ACC, Andheri
Shri R.K. Suvarna, AC (Import)		Customs, ACC, Andheri
Shri Bipin Jadhav, AC (Import)		Customs, ACC, Andheri
Shri Ashwini Bandekar, AC (Import)		Customs, ACC, Andheri
Shri Roshan Lal, AC (Import)		Customs, ACC, Andheri
Shri S C Das, AC (General)		Customs, ACC, Andheri
Name of attendees from stakeholder organizations		**Organization**
Shri Dushyant Mulani, Shri Sanjeev Harale, Shri Kaushal Thakkar, Shri Ketan Desai, Shri K.Shetty, Shri Ganpat Korde, Shri Shanakar Shinde		BCBA
Shri Bala Ayer		ACAAI
Shri Manoj Singh		MIAL
Shri Raj Dhule, Shri Jignesh		AIATSL
Shri Mark Fernandes		MSF Bombay
Shri Rishikesh		Siemens Healthcare
Shri Vasudevan, Shri Gaurav Dogar		DHL Express
Shri Jayesh parab		MACCIA
Shri Venkatraman		DHL Logistics
Shri Newton Fernandes		All Nippon Airlines
Other attendees		
Shri Paresh Shah	Shri Nandan Kanchan	Shri Anwar Khan
Shri Mangesh Mali	Shri Sorab P Engineer	Smt. Chaitaly Mehta
Shri Rajiv Desai	Shri Sanjeev Harale	Shri Dayanand Kotian
Smt. Vaishali Kulkarni	Shri Abdul Gafume	Shri Paresh Sangani
Shri Prathmesh Sirambedkar	Shri Lynn Bothello	Shri Ashish Pednekar

At the outset, Commissioner of Customs (G) welcomed the members of Trade, Customs Broker Associations, Airlines Representatives, Custodian Representatives, and other stake holders present for the web-meeting.

Following agenda points were taken up:

A. <u>OPEN POINTS FROM LAST PTFC MEETING HELD ON 25.09.2020</u>

1. **EDI Systems needs to have inbuilt validation for capturing the date of feeding the Inward Date in the EDI system**

(BCBA)

Trade highlighted that on various occasions, it had been observed that IGM inward date which is filed after landing of aircraft, is filed on a date prior to landing date of flight. This results in levy of interest and late submission charge and also demurrage by Custodian, based on the incorrect updating of inward date.

Suggestion put forth by BCBA while submitting the Agenda Point:

"We request that inbuilt validation should be created in EDI system for capturing the accurate feeding time and date of inward-date, on real time basis."

Specific data submitted by BCBA was looked into by Commissioner (G) and informed that the matter has been taken up with DG (System) to figure out the same. Whether the issue is specific or general in nature, efforts are being made to resolve it. The matter may be closed and suo-moto action will be taken after getting more information on the subject. .

(Point Closed)

2. Request to provide more KIOSK - TOUCH SCREENS terminal

(Customs)

Presently only one touch screen is available at ACC. We propose to install few touch screens terminals at ACC and request to repair those touch screen which are out of order.

BCBA submitted that two KIOSK - TOUCH SCREENS terminals are to be installed one at light shed and other at heavy shed.

Commissioner (G) was of the view to provide a separate space at the gate of ACC premises along with some officers for proper arrangement of the same. Commissioner (Import) and Commissioner (G) have desired to meet with the Manger, MILA to further discuss the issue.

(Point Open)

3. Short collection of charges by MIAL on import consignments

(MIAL)

We refer to the short collection charges which are collected by MIAL. Primarily we have thoroughly checked the matter and discussed with MIAL Authorities. It has been observed that it is the Console agent who is giving incorrect chargeable weight to MIAL. Importer/ CB have no role to play in such short collection due to improper details given by Console Agents.

Hence, we suggest the following:

a) All Console agents are registered with MIAL and have their PD account with MIAL. Hence any short collection arising out of wrong information provided by the Console agents, the concerned Console Agents account should be debited for short collection.

b) MIAL is requested to setup a mechanism wherein the chargeable weight should be directly uploaded in their system by the concerned Console Agents while releasing the online DO, thus avoiding the requirement of hard copy of HAWB.

c) Any instance of short collection notice should be flagged out with proper email communication by MIAL accounts team within 30 days of the incidence clearance. Necessary steps should be taken to ensure that accurate online information isexchanged between Airline, Console Agent and MIAL to avoid insistence on manual hard copy of MAWB / HAWB. This paperless initiative will help to maintain accurate declaration.

MIAL representative stated that they are in the process of digitalizing all the data within two weeks. This paperless initiative will help to maintain accurate declaration.

This will also avoid the requirement of hard copy of HAWB. MIAL representative also stated that a circular is to be issued regarding debiting of PD account of console agent for any short collection arising out of wrong information provided by the console agent.

Manager, MIAL stated that SOP in this regard will be issued at the earliest and will come out with Custodian notice having specific guidelines.

(Point Open)

4. Inward Date

Nowadays customs have given us the facility of filing our bills of entry in advance. Even the assessment is done and we can pay the duty and be ready to clear the shipment as soon as the segregation is done. But it is important that the airline registers the inward date within the stipulated time, so that we can go for goods registration and complete our formalities for clearance of the shipment. Inward date must be filed within one hour of the flight landing.

Commissioner (G) stated that a Public Notice regarding filing of IGM on time will be issued at the earliest.

(Point open)

5. LUFTHANSA CARGO

Submission of Noter set by email, to be digitally. At least by those Airlines who are able to submit the scannedcopies.We already submit a similar set to AIU on email and have no issue since long time, its quick immediately after the flight check and no paper, today we are submitting almost 1000 of copies and would save time and storage issue, instead it would be saved digitally and refer any time. Which is also the need of hour to avoid so many airlines staff visiting your office for submission of same.

Commissioner (General) assured that matter may be looked into and will get resolved as soon as possible.

(Point Open)

Fresh Agenda Points

BCBA

(Import)

1. Issues with Faceless assessment

I. Delay in assessment of B/E's at various locations across the country.

II. Examination order and instructions are given asking for bank attested invoice, 100% examination, asking for compliance of BIS, WPC etc, even where not required.

III. Delay in clearance of consignments EPCG, Advance Authorization and provisional assessment cases due to 100% BG being levied, even in cases where not applicable. To remove the 100% BG there is confusion between PAG and FAG, as regards who will remove the 100% BG.

IV. Examination orders are not given properly for second hand consignments, re-import consignments, temporary imports etc. For rectification of the examination order there is confusion whether to approach PAG or FAG.at present considerable clearances are delayed due to this,

V. Several FAG locations do not operate on Saturdays unlike at Mumbai and therefore B/E's submitted on Friday would not get assessed and cleared on Saturday.

VI. Difficulty in carrying out provisional assessments in FAG due to co-ordination and execution of Bond and BG (wherever required) SVB, FTA, other duty exemption schemes including concessional rate for manufacturing & project imports, etc.

VII. Some assessments are being made with examination instructions entered in the special comments box which CB and Trade is not aware. Hence during examination after payment of duty there are surprise checks which the trade needs to face.

VIII. SOP for carrying out amendment to the import BE's which are assessed by FAG needs to be provided ,since there are considerable amendments pertaining to short shipments, part shipment change of AWB etc, needs to be carried out for timely clearances.

IX. Further they have suggest if assessments are delayed for more than 24 hours, a nodal officer be kindly appointed to expedite the clearance.

Commissioner (import) stated that all these points including procedural and system issues are being addressed and taken up with CBIC, The Board is in the process of addressed the same and CBIC may issues SOPs in this regard at the earliest.

Commissioner (G) has suggested that:-

(i) Trade/CB should impress upon the advance filing of Bills of Entry, this will help to resolve most of the issues raised.

(ii) Trade should ensure to file Bills of Entry before the consignment arrived, problem faced after that will be taken up with Board..

(iii) Importer/CB should impress upon the quality of data such as description/declaration etc. at the time of filing the bill of entry

(iv) Trade should sign up for AEO, so that most of Bills of entry will get facilitated through EDI System. .

(Point Open)

2. **Delay in receipt of first copy of Bill of Entry**

(Import)

Due to EDI system delay there is considerable delay in receiving the first copy of the printout, after the assessment is complete. They have requested to resolve the same.

Commissioner (import) instructed Addl. Commissioner of Customs(Import) to take up the issue with DG(System) to resolve the same at the earliest.

(Point Open)

3. **For Bonding of goods in public bonded warehouse**

The bond department is asking for a transit insurance policy to be given by the importers, whereas as per the FAQ released by CBIC, point no.9 it is the Custom bonded warehouse owner(licensee) needs to furnish such all-inclusive policy which includes transit and storage.

Hence no separate policy needs to be submitted by importers at the time Bonding. It is pertinent to note that Importers area already furnishing Triple Duty Bond.

BCBA has requested to instruct the bond department to follow point no. 9 for not insisting separate insurance policy from importer for transit.

Commissioner (G) assured that if there is no specific instruction that required insurance for transit, than no transit insurance will be asked for.

(Point Closed)

ACAAI

4. Challan for drawback surrender.

(Export)

When we want to surrender the drawback amount, we prepare three copies of the challan for the principal amount of drawback refund and another three copies of the challan for the interest amount. Total six copies are prepared.
The file number is the same for both. Also only one demand draft is given, which includes the principal amount plus the interest payable. In order to simplify and reduce the number of copies, we request that we follow the same system as at JNPT. In JNPT, there is only one challan on the face of which the principal and the interest amounts are shown separately. We have requested that follow the same practice at ACC as well. We have attached both the copies of the challan for your perusal.

Commissioner (Export) has agreed to follow the same practice as being followed at JNPT, and assured that instructions will be given to subordinate officers to do the same.

(Point Closed)

The meeting ended with thanks to the Chair.
This issue with the approval of Commissioner of Customs (General /Import/ Export), Mumbai Customs Zone-III.

Sd/- dated 20.10.2020
(M.K. Sarangi)
Addl. Commissioner of Customs (Import)
Air Cargo Complex, Mumbai

COPY TO:

1. Chief Commissioner of Customs, Zone-III, Mumbai - For kind information, please.
2. Pr. Commissioner / Commissioner of Customs, Import / Export / General, ACC.
3. All Addl./Jt./DC/AC Commissioner of Customs, Import / Export / General, ACC.
4. All members of PTFC meeting (via E-mail)
5. E &T Section/PSO Section for circulation in Export/General Commissionerate.
6. EDI Section- For uploading on ACC Website.
7. Asst, Drug Controller, ACC, Sahar.
8. Office copy. discussion